

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an application for mandates in the nature of Writs of Certiorari under and in terms of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

CA/WRT/0566/2024

Chartered Institute of Personnel
Management of Sri Lanka
HR House,
43, Vijaya Kumaranathunga
Mawatha,
Narahenpita, Colombo 5.

PETITIONER

Vs.

1. Right to Information Commission
Room No. 203-204, BMICH,
Buddhaloka Mawatha,
Colombo 07.
2. Justice Upali Abeyratne (Retd)
Chairman
Right to Information Commission,
Room No. 203-204, BMICH,
Buddhaloka Mawatha,
Colombo 07.
- 2A. Mr. Daya Lankapura,
Chairman
Right to Information Commission,
Room No. 203-204, BMICH,
Buddhaloka Mawatha,
Colombo 07.
3. Ms. Kishali Pinto-Jayawardena
Commission Member,
Right to Information Commission,
Room No. 203-204, BMICH,
Buddhaloka Mawatha,
Colombo 07.

3A. Justice D.N. Samarakoon (Retd)
Commission Member,
Right to Information Commission,
Room No. 203-204, BMICH,
Buddhaloka Mawatha,
Colombo 07.

4. Mr. Jagath Liyana Arachchi,
Commission Member,
Right to Information Commission,
Room No. 203-204, BMICH,
Buddhaloka Mawatha,
Colombo 07.

5. Mr. A.M. Nahiya
Commission Member,
Right to Information Commission,
Room No. 203-204, BMICH,
Buddhaloka Mawatha,
Colombo 07.

5A. Mr. A.P. Pandithage,
No.512A, Bokundara Road,
Arawwala, Pannipitiya.

RESPONDENTS

Before: Mayadunne Corea, J.
Mahen Gopallawa, J.

Counsel: Rajiv Amarasuriya with Ms. Yohani Yoharajah and Mathew David instructed by
Ms. Hashini Rathnayake for the Petitioner.

Ms. Dilumi de Alwis with Ms. Manisha Dissanayake instructed by Ms. Aruni
Senarathna for the 1st to 5th Respondents.

Palitha Kumarasinghe, PC with Sahiru Jasinghe instructed by Ms. Chamali
Ranathunga for the 5A Respondent.

Argued on: 27.04.2026

Written Submissions: Petitioner on 07.04.2026 and 26.05.2026
1st to 5th Respondents on 06.04.2026 and 26.05.2026
5A Respondent on 02.04.2026 and 27.05.2026

Decided on: 10.07.2026

Mahen Gopallawa, J.

Introduction

The Petitioner is the Chartered Institute of Personnel Management incorporated by the Institute of Personnel Management, Sri Lanka Law No, 24 of 1976, as amended by Act No. 31 of 2018 ("the CIMP Law").

In the instant application, the Petitioner has impugned the order of the 1st Respondent Right to Information Commission consisting of the 2nd to 5th Respondents dated 08.08.2024 (P1) holding that the Petitioner is a "public authority" in terms of section 43 of the Right to Information Act, No. 12 of 2016 and has sought writs of *Certiorari* to quash such order *in toto* or the part thereof relating to the aforementioned finding.

The 5A Respondent, who had submitted a request for information from the Petitioner and had lodged an appeal before the 1st Respondent Commission ("the RTI Commission") in view of the failure on the part of the Petitioner to respond to the said request, had been permitted by Court to intervene in these proceedings.

The 1st to 5th Respondents as well as the 5A Respondent, by way of their statements of objections, have objected to the grant of the aforementioned reliefs sought by the Petitioner. Accordingly, the application was taken up for argument on 27.04.2026 and the parties have also filed pre-and post-hearing written submissions. The 5A Respondent has also raised certain legal objections, which I intend to address in due course after a consideration of the merits of the application.

Factual Background

The salient facts of this application, as extracted from the pleadings and documents filed by the parties, may be briefly presented as follows;

The 5A Respondent, who had been admitted as a Chartered Fellow Member of the Petitioner, had submitted a request dated 30.10.2023¹ to the Information Officer under section 24 of the Right to Information Act ("the RTI Act") seeking information relating to the decision taken by the Petitioner to terminate his membership. As there was no response to his original request, the 5A Respondent had submitted an appeal to the Designated Officer dated 17.11.2023² under section 31 of the Act. Since no response to the said appeal too was forthcoming, the 5A Respondent had preferred an appeal to the RTI Commission dated 14.12.2023³ in terms of section 32 of the RTI Act.

¹ Submitted with the petition as "X1" in the proceedings before the Commission marked P2

² Submitted with the petition as "X2" in the proceedings marked P2

³ The appeal of the 5A Respondent appears at pp 28-32 of the proceedings marked P2

Upon notice received, the Petitioner had appeared before the RTI Commission and had objected to the jurisdiction of the Commission upon the basis that the Petitioner is not a “public authority” under the RTI Act. Oral and written submissions had been entertained from the parties at the inquiry.⁴

Thereupon, the Commission had proceeded to issue the order dated 08.08.2024 (P1) holding that the Petitioner fell within the definition of a “public authority” under section 43 (b), although it was not encompassed within section 43(j) or section 43(k). Accordingly, the Commission had concluded that it had jurisdiction to hear the appeal preferred by the 5A Respondent under section 32 of the Act and had fixed the appeal for hearing on the merits. It is that order (P1) made by the RTI Commission on the issue of jurisdiction that has been impugned in this writ application.

Grounds of Review and Analysis

In the petition, the Petitioner has contended that the acts and/or omissions of the Respondents impugned herein are illegal, ultra vires (both procedurally and substantively), unlawful, arbitrary and capricious, and are in violation of the principles of natural justice, legitimate expectation, reasonableness, fairness, rationality and proportionality, and are further tainted by improper motive, collateral considerations and/or mala fides.⁵ However, the primary ground urged by the learned Counsel for the Petitioner when the application was taken up for hearing, which is also reflected in the post-hearing written submissions, was that the RTI had misconstrued section 43(b) of the RTI Act in determining that the Petitioner fell within the definition of a “public authority” and is subject to the right to information regime set out in the said Act.

Constitutional and Statutory Framework relating to the Right to Information

The right of access to information has been enshrined as a fundamental right by the Nineteenth Amendment to the Constitution in Article 14A of the Constitution. Article 14A provides as follows;

14A. (1) Every citizen shall have the right of access to any information as provided for by law, being information that is required for the exercise or protection of a citizen's right held by: -

(a) the State, a Ministry or any Government Department or any statutory body established or created by or under any law;

(b) any Ministry of a Minister of the Board of Ministers of a Province or any Department or any statutory body established or created by a statute of a Provincial Council;

⁴ As per the order of the RTI Commission (P1), the hearing into the appeal had been conducted on 17.04.2024, 15.05.2024 and 29.05.2024. Written submissions had been filed by the Petitioner dated 08.04.2024, 27.05.2024 and 26.06.2024, which have been submitted with the proceedings marked P2 to the petition at pp 39-44, 45-50, 86-100 and 109-131 respectively. The written submissions filed by the 5A Respondent dated 17.04.2024, 09.05.2024 and 24.06.2024 are at pp 14-21, 68-81 and 150-171 of the said proceedings marked P2.

⁵ vide paragraphs 77-79 of the petition

*(c) any local authority; and
(d) any other person, who is in possession of such information relating to any institution referred to in sub-paragraphs (a), (b) or (c) of this paragraph.*

(2) No restrictions shall be placed on the right declared and recognized by this Article, other than such restrictions prescribed by law as are necessary in a democratic society, in the interests of national security, territorial integrity or public safety, for the prevention of disorder or crime, for the protection of health or morals and of the reputation or the rights of others, privacy, prevention of contempt of court, protection of parliamentary privilege, for preventing the disclosure of information communicated in confidence, or for maintaining the authority and impartiality of the judiciary.

The Right to Information Act, No. 16 of 2016 was accordingly enacted to facilitate the implementation of Article 14A, and, the purposes of the Act are described in the Long Title as *“to provide for the right of access to information; to specify grounds on which access may be denied; to establish the right to information commission; to appoint information officers; to set out the procedure and for matters connected therewith or incidental thereto.”*

The right of access to information is articulated in section 3 of the RTI Act in the following manner;

3. (1) Subject to the provisions of section 5 of this Act, every citizen shall have a right of access to information which is in the possession, custody or control of a public authority.

(2) The provisions of this Act, shall not be in derogation of the powers, privileges and practices of Parliament.

Section 5 of the Act sets out the circumstances in which the right of access to information may be denied. Section 4 of the Act provides for primacy of the RTI Act over other written law and its text is as follows;

4. The provisions of this Act shall have effect notwithstanding anything to the contrary in any other written law and accordingly in the event of any inconsistency or conflict between the provisions of this Act and such other written law, the provisions of this Act shall prevail.

“Public Authority” under the Right to Information Act

It is common ground between the parties that the dispute in issue in the instant case relates to the interpretation of the term “public authority.” The definition of the term “public authority” is included in section 43 of the Act and sub-sections (b), (j) and (k) thereof, which are material to the instant case are reproduced below;

43. In this Act, unless the context otherwise requires—

“public authority” means –

.....

(b) any body or office created or established by or under the Constitution, any written law, other than the Companies Act No. 7 of 2007, except to the extent specified in paragraph (e), or a statute of a Provincial Council;

.....

.....

(j) higher educational institutions including private universities and professional institutions which are established, recognised or licensed under any written law or funded, wholly or partly, by the State or a public corporation or any statutory body established or created by a statute of a Provincial Council;

(k) private educational institutions including institutions offering vocational or technical education which are established, recognised or licensed under any written law or funded, wholly or partly, by the State or a public corporation or any statutory body established or created by a statute of a Provincial Council;

Since the Petitioner has taken up the position that there are discrepancies between the Sinhala and English text in respect of the above definitions, the corresponding Sinhala text is reproduced below;

43. මේ පනතේ පද සම්බන්ධයෙන් අන්‍යාර්ථයක් අවශ්‍ය වුවහොත් මිස.

“පොදු අධිකාරිය” යන්නෙන්

.....

(අ) ආණ්ඩුක්‍රම ව්‍යවස්ථාව හෝ (ඉ) ජේදය යටතේ නිශ්චිතව දක්වා ඇති ප්‍රමාණයට හැර 2007 අංක 7 දරණ සමාගම් පනත හැර යම් ලිඛිත නීතියක්, හෝ පළාත් සභාවක ප්‍රඥප්තියක් මගින් හෝ යටතේ පිහිටුවන ලද යම් මණ්ඩලයක් හෝ කාර්යාලයක්,

.....

.....

(ඒ) යම් ලිඛිත නීතියක් යටතේ පිහිටුවනු ලබන, හඳුනාගනු ලබන හෝ බලපත්‍රයක් ලබාදෙනු ලබන හෝ රජය මගින් හෝ රාජ්‍ය සංස්ථාවක් මගින් හෝ පළාත් සභා ප්‍රඥප්තියක් යටතේ පිහිටුවන ලබන හා ඇති කරනු ලබන යම් ව්‍යවස්ථාපිත මණ්ඩලයක් මගින් පූර්ණ වශයෙන් හෝ අර්ධ වශයෙන් මූල්‍යාධාර සපයන පෞද්ගලික විශ්ව විද්‍යාල සහ වෘත්තීය ආයතන ඇතුළු උසස් අධ්‍යාපන ආයතන;

(ඔ) යම් ලිඛිත නීතියක් යටතේ පිහිටුවනු ලබන, පිළිගනු ලබන හෝ බලපත්‍රයක් ලබාදෙනු ලබන හෝ රජය මගින් හෝ රාජ්‍ය සංස්ථාවක් මගින් හෝ පළාත් සභා ප්‍රඥප්තියක් යටතේ පිහිටුවන ලබන හා ඇති කරනු ලබන යම් ව්‍යවස්ථාපිත මණ්ඩලයක් මගින් පූර්ණ වශයෙන් හෝ අර්ධ වශයෙන් මූල්‍යාධාර සපයන පෞද්ගලික විශ්ව විද්‍යාල සහ වෘත්තීය ආයතන ඇතුළු උසස් අධ්‍යාපන ආයතන;

In such context, it would also be necessary to consider the provisions of section 44 of the Act, which provides as follows;

44. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail."

Interpretation of “Public Authority” under Section 43(b) of the RTI Act

The learned Counsel for the Petitioner submitted that, although the RTI Commission has found that the Petitioner does not fall within the ambit of sub-sections (j) and (k) of section 43 of the RTI Act due to the absence of “public funding,” it has nevertheless held that the Petitioner was a “public authority” since it fell within the ambit of sub-section (b) thereof.

In the interests of clarity and for ease of reference, the principal findings of the Commission on the interpretation of section 43(b) in the order (P1) are as follows;

There can be no dispute in regard to the Sinhala and English terms of ‘කාර්යාලයක්’ (“Office”) The core of this contention revolves around what the Respondent argues to be the different meaning of “මනේවලයක්” in the Sinhala version of Section 43 (b) which would vastly limit the application of that term to ('Board') whereas the English version refers to, ‘anybody.’ The Respondent states that, Section 44 of the RTI Act which affords primacy to the Sinhala version of the Act in the event of any discrepancy, must prevail and that, the CIPM is not covered by Section 43 (b) of the RTI Act.

We do not find this contention tenable. In our view, a reading of the Sinhala and English versions of Section 43 (b) of the RTI Act does not give rise to a 'discrepancy' or an 'inconsistency' between the two versions as the Respondent contends. Rather, the Sinhala version of ‘මනේවලය’ is a linguistic translation of the term ‘anybody’ (English version of Section 43 (b)). To hold otherwise and to limit ‘මනේවලය’ to 'Board' would be to endorse a strained restriction of Section 43 (b).

That would seriously confine the application and ambit of the RTI Act to a category of 'Boards' or 'Offices' 'created or established under the Constitution or any written law...' If this limitation is imposed on the bare reading of Section 43(b), an absurd result will ensue in that, this very Commission (which itself is unequivocally a Public Authority within the meaning of Section 43 (b) of the RTI Act), will not fall into the meaning of ‘මනේවලයක්’ ('Board') or ‘කාර්යාලයක්’ ("Office") established or created under the Constitution or any statute.

It is based on such finding of the Commission on the interpretation of section 43(b) that the Petitioner has sought to impugn the order of the RTI Commission (P1) before this Court.

The position taken up by the Petitioner on the interpretation of section 43(b) of the RTI Act, as disclosed in the submissions made by learned Counsel and in its written submissions, may be summarized as follows;

- a. There is a clear and unequivocal discrepancy between the Sinhala and English texts in respect of section 43(b) as the term ‘මනේවලයක්’ in the Sinhala text is synonymous with the term 'Board' and not 'Body' found in the English Translation.
- b. The Petitioner has further relied upon definitions in glossaries and dictionaries to support his position. He has cited the Glossary of Technical Terms 'Law' by the Educational Publications Department, where the term “මනේවලය” is defined as "Board" and the term

"Body" is defined as "සමූහනය," the Akura Sinhala Dictionary where the definition of "මණ්ඩලය" is "Board," the Malalasekara English to Sinhala Dictionary which defines "Board" as "මණ්ඩලය" and "Body" as "සමූහනය," and the Sri Sudharman D. Zylva Walisinghe English to Sinhala Dictionary which defines 'Body' as "සමූහනය."⁶

- c. In terms of Article 23 (1) of the Constitution, which provides that *"all laws and subordinate legislation shall be enacted or made and published in Sinhala and Tamil, together with a translation thereof in English: Provided that Parliament shall, at the stage of enactment of any law determine which text shall prevail in the event of any inconsistency between texts,"* and section 44 of the RTI Act, if there is a discrepancy between the Sinhala and English texts, as legislative enactments can only be published in Sinhala or Tamil and English text constitutes a translation of the Law, the Sinhala text should take precedence.
- d. The RTI Act clearly and unequivocally defines the scope and ambit of 'Public Authority' in the 12 sub-clauses of Section 43. Section 43(b) of the Sinhala text of the Act does not contain any ambiguity when it identifies *"යම් මණ්ඩලයක් හෝ කාර්යාලයක්,"* which are created or established by or under any written law, as the entities that are subject to the said provision.
- e. Relying on the aforementioned glossaries and dictionaries, the Petitioner submits that the ordinary meaning of the word "මණ්ඩලය" is "Board" and "කාර්යාලය" is "Office."
- f. The Petitioner submits that, where there is no ambiguity, the literal rule of interpretation should be followed and the ordinary meaning of the words in issue should be given effect to. In support of such position, the Petitioner has cited the following text from N. S Bindra's *'Interpretation of Statutes'* (9th edition);

It is a rule of construction of statutes that in the first instance the grammatical sense of the words is to be adhered to. The words of a statute must prima facie be given their ordinary meaning. Where the grammatical construction is clear and manifest and without doubt, that construction ought to prevail unless there be some strong and obvious reason to the contrary.

When there is no ambiguity in the words, there is no room for construction. When the language of a statute is unambiguous, in interpreting the provisions thereof, it is not necessary to look into the legislative intent or the object of the Act. No single argument has more weight in statutory interpretation than the plain meaning of the word.

⁶ The extracts of such publications have been annexed to the petition marked P5A-P5D.

- g. Citing several institutions that have been identified as “Boards”⁷ and “Offices”⁸ in their constituent legislation, the Petitioner has taken up the position that Petitioner, which is identified as an “Institute”(ආයතනය) in its constituent legislation, does not fall within the terms “Board” nor “Office,” as contemplated in section 43(b). The Petitioner has pointed out that it has been established as the “Chartered Institute of Personnel Management” (චරලන් ශ්‍රී ලංකා පෞද්ගලික පිරිස් කළමනාකරණ ආයතනය) in section 2 of the Institute of Personnel Management Act No. 31 of 2018.
- h. In this regard, it was also submitted that expansive meaning accorded in the RTI order (P1) to the term “anybody” in the English translation of section 43(2) has had the effect of obliterating the distinction between the terms “Board” and “Office” contemplated in the Sinhala text.
- i. The Petitioner further contends that the Legislature has specifically provided conditions under which educational and professional institutions as ‘public authorities’ under sub-sections (j) and (k) of section 43 of the RTI Act and points out that the RTI Commission itself has found that the Petitioner did not meet such criteria to be considered as a “public authority” due to the absence of public funding.
- j. On this issue, the Petitioner also submits that the rule of statutory interpretation *generalis specialibus non derogant*, which is to the effect that "general provisions do not derogate from special ones," should be employed in interpreting the various sub-sections of section 43 of the RTI Act, and, argues that the intention of the Legislature could not have been to expressly disqualify a category of entities under specific provisions only to include them through a broader general provision.
- k. The interpretation of section 43(b) disregarding the above by the RTI Commission would lead to absurd consequences and improperly bring countless private incorporated bodies within the ambit of the RTI Act, which would not have been intended by the Legislature.⁹
- l. The learned Counsel for the Petitioner further submitted that if there was a *lacuna* in section 43 of the RTI Act, it should be addressed by the Legislature and the Court was obliged to give effect to the provisions of the Act as it presently stood.

I will now proceed to consider the issues arising from the aforementioned position taken up by the Petitioner, along with the responses of the Respondents thereto.

⁷ The “Boards” referred to by the Petitioner in its post-hearing written submissions are the Sri Lanka Accounting and Auditing Standards Monitoring Board established under the Sri Lanka Accounting and Auditing Standards Act, No. 15 of 1995, the Ceylon Electricity Board established under the Ceylon Electricity Board Act, No. 17 of 1969 and the Sri Lanka Transport Board established under the Sri Lanka Transport Board Act, No. 27 of 2005.

⁸ The “Offices” referred to by the Petitioner in its post-hearing written submissions are the Office on Missing Persons established under the Office on Missing Persons (Establishment, Administration and Discharge of Functions) Act, No. 14 of 2016, the National Audit Office established under the National Audit Act, No. 19 of 2018 and the Office for National Unity and Reconciliation established under the Office for National Unity and Reconciliation Act, No. 01 of 2024.

⁹ The Petitioner has provided several examples of private and non-governmental bodies that have been incorporated by legislation in paragraph 129 of its post-hearing written submissions.

It is observed that the Petitioner's contention that there is a discrepancy or inconsistency between the Sinhala and English texts in respect of section 43(b) premised on the basis that the ordinary meaning of the terms "යම් මණ්ඩලයක් හෝ කාර්යාලයක්" are "any Board or Office" and that the terms "any body or office" used in the English text is not an accurate translation thereof.

However, in its order, as cited above, the RTI Commission has made a specific finding that there is no such discrepancy or inconsistency between the Sinhala and English texts upon the premise that the term 'මණ්ඩලය' in the Sinhala text as a linguistic translation of the term "any body" in the English text of Section 43 (b). In addition, the Commission appears to have been conscious of the fact, that, to hold otherwise and to limit 'මණ්ඩලය' to 'Board', would be to endorse a 'strained restriction' of section 43 (b).

Regarding such conflicting and competing positions taken up by the parties, in the first instance, I wish to observe that the dispute is confined to the issue whether the term "any body" is an accurate translation of the term 'මණ්ඩලය', since there appears to be no divergence of opinion between the parties that the term "office" is an accurate translation of the term "කාර්යාලය."

Secondly, I wish to observe that the actual term used in the Act for the term 'මණ්ඩලය' in the English text is "any body," and, as such, the Petitioner is inviting this Court to replace the said term "any body" with the term "Board" in the English text, in interpreting the ambit of section 43(b). On this issue, the 1st to 5th Respondents have specifically taken up the position that the Courts cannot be invited to substitute statutory language in determining whether or not a provision of a law is too broad, and, that the Courts are bound to give effect to, and interpret legislation according to the plain, ordinary and literal meaning of the words employed in the statute irrespective of the result, if the words of the statute in question are clear and unambiguous.

In advancing such position, the said Respondents have adverted to the following citation in the celebrated text *Maxwell on The Interpretation of Statutes*¹⁰ relating to literal construction;

The rule of construction is "to intend the legislature to have meant what they have actually expressed." The object of all interpretation is to discover the intention of Parliament, "but the intention of Parliament must be deduced from the language used," for "it is well accepted that the beliefs and assumptions of those who frame Acts of Parliament cannot make the law."

Where the language is plain and admits of but one meaning, the task of interpretation can hardly be said to arise.

...

Where, by the use of clear and unequivocal language capable of only one meaning, anything is enacted by the legislature, it must be enforced, however harsh or absurd or contrary to common sense the result may be. The interpretation of a statute is not to be collected from any notions which may be entertained by the court as to what is just and

¹⁰ P. St. J. Langan, *Maxwell on The Interpretation of Statutes* (12th ed, Sweet & Maxwell, 1969) pp 28-29

expedient; words are not to be construed contrary to their meaning, as embracing or excluding cases merely because no good reason appears why they should not be embraced or excluded. The duty of the court is to expound the law as it stands, and to “leave the remedy (if one can be resolved upon) to others.”

I am inclined to accept the position taken up by the 1st to 5th Respondents that it would not be appropriate for this Court to make any substitutions to the statutory language used in the English text of section 43(b), specifically to replace the term “any body” with the term “Board”, as the Petitioner has invited this Court to do. Thus, I am of the view that section 43(b) should be interpreted with recourse to the specific text used in the Act without any modification.

Thirdly, I wish to observe that it was not submitted by any party that a strict word-by-word translation has to be done in translating legislation. Neither does there seem to any legislative sanction or judicial decisions supporting such an approach.

Next, I wish to consider the *vires* and the reasonableness of the interpretation accorded by the RTI Commission to the ambit of section 43(b). In the order (P1), the Commission has made the following findings on the ambit of section 43(b);

We are of the view that sub-section (b) is a singular limb of Section 43 that stands on its own clearly untrammelled by the conditional contexts of the other subsections of Section 43. That distinction between Section 43(b) and other relevant sub-sections of Section 43 will be adverted to later. In other words, the only consideration applicable for Section 43(b) to operate will be whether ‘any body’ or ‘office’ has been created or established by ‘the Constitution or any written law...’ Consequently we find that the Respondent CIMP falls firmly and squarely within the ambit of a ‘Public Authority’ in terms of Section 43(b).

In their post-hearing written submissions, the 1st to 5th Respondents has identified section 43(b) as a “broad and all- encompassing provision” that covers any entity that is incorporated by an Act of Parliament (as in the case of the Petitioner Institute), bringing them within the purview of the RTI Act.”¹¹

On the contrary, the Petitioner has advocated a more restrictive interpretation, contending that the application of section 43(b) should be limited to “Boards” or “Offices” established by or under any written law, and, has alleged that such expansive meaning accorded in the RTI order (P1) to the term “anybody” in the English translation has had the effect of obliterating the distinction between such terms contemplated in the Sinhala text.

The response of the RTI Commission to such contention, as found in the order (P1), is that such an interpretation would “seriously confine the application and ambit of the RTI Act” and that would lead to an “absurd result” where the RTI Commission itself would be excluded from the application of the Act.

The 5A Respondent too has contested the above interpretation advanced by the Petitioner and submitted that only companies incorporated under the Companies Act No. 7 of 2007 (as

¹¹ Post-hearing written submissions of the 1st to 5th Respondents, paragraph 10

amended) are the only “bodies” and “offices” established by the Constitution or any written law that have been exempted from the application of section 43(b). The 5A Respondent has sought to justify such conclusion upon the bases that the Legislature has (a) excluded companies incorporated under the Companies Act, as they are not “Boards” or “Offices” other than companies specified in sub-paragraph 43(e) of the Act; (b) included companies incorporated under the Companies Act in which the State or a public corporation or both together hold 25% or more of the shares or otherwise has a controlling interest, as specified in section 43(e); and (c) included a Government Department or a public corporation under sections 43(c) and 43(d) respectively.

As reflected in its post-hearing written submissions, in concluding that the Petitioner fell within the ambit of section 43(2), the RTI Commission appears to have placed heavy reliance upon two factors; one being the fact of the Petitioner’s establishment and incorporation by an Act of Parliament; and the other being the public nature and significance of its activities.¹² It is observed that incorporation by an Act of Parliament denotes and confers the *imprimatur* of Parliament regarding its significance, powers and functions of such institution. In my view, it is the highest status and form of recognition that a body corporate can acquire and cannot be easily disregarded. It is also not irrational or unreasonable to expect such an institution to conduct its affairs in a transparent manner and be accountable for its actions, which are the objectives that the regulatory regime on the right to information seeks to foster.

On the second factor, the submissions made by the parties in respect of the functions and activities of the Petitioner have been discussed in the RTI order (P1), whilst reference has also been made in its written submissions to the public nature and significance of the objects of the Petitioner in section 3 (a), (c), (d), (e), (f) and (g) of the CIPM Law. Considering the conflicting and competing positions taken up by the Petitioner and the 5A Respondent before it, I am of the view that the use of such criteria by the RTI Commission to determine whether a particular institution can be considered as a “public authority” in terms of section 43(2) is rational and reasonable.

Since all parties have referred to the intention of the Legislature, I propose to examine such issue with recourse to relevant statutory provisions and judicial decisions. The Preamble to the RTI Act articulates the object and the purpose of the Act in the following terms;

WHEREAS the Constitution guarantees the right of access to information in Article 14A thereof and there exists a need to foster a culture of transparency and accountability in public authorities by giving effect to the right of access to information and thereby promote a society in which the people of Sri Lanka would be able to more fully participate in public life through combating corruption and promoting accountability and good governance. (emphasis added)

¹² vide paragraph 38

Such intention of the Legislature has been referred to in several decisions of our Superior Courts. When the constitutionality of the *Right to Information Bill* was challenged, the Supreme Court, in its Determination has, *inter alia* observed as follows;¹³

*The express recognition of the right as enshrined in Article 14A undoubtedly advances the sovereignty exercised and enjoyed by the people and accords with the Constitutional directive postulated in Article 4 (d) of the Constitution, which requires that “the fundamental rights which are by the Constitution declared and recognized shall be **respected, secured and advanced by all organs of government** and shall not be abridged, **restricted or denied, save in the manner and to the extent hereinafter provided**”. (emphasis added)*

Accordingly, the right of access to information like all other rights recognized under the Constitution should also be enjoyed subject to certain overriding public interests in non-disclosure as well as the constitutional duties stipulated under Article 28 (e) to the Constitution, where it is specifically stipulated that the exercise of and enjoyment of rights and freedoms are inseparable from the performance of duties and obligations and accordingly it is the duty of every person in Sri Lanka to respect the rights and freedoms of others. Hence, Clause 5 of the Bill in accordance with Article 14 (A) (2) of the Constitution performs an equally important task in ensuring that the right of access to information is suitably restricted to reflect these important countervailing considerations.

Therefore, the underlying approach of the Bill is to meaningfully give effect to the right of access to information enshrined in Article 14A(1) while successfully balancing such right with restrictions that are necessary in a democratic society as set out in Article 14A (2). (emphasis added by me)¹⁴

In ***Chamara Sampath v. Neil Iddawala***,¹⁵ which was an appeal to this Court in terms of section 34 of the RTI Act, has referred to the manner in which the provisions of the Act should be interpreted in the following manner (per Abayakoon, J.);

It is abundantly clear that by enacting RTI Act No.12 of 2016, the intention of the legislature had been to give effect more robustly to the provisions of the Constitution by fostering a culture of transparency and accountability in public authorities and institutions by giving effect to the right of access to information in combatting corruption and promoting accountability and good governance. It needs to be reminded that it is for the very purpose that the legislature by its wisdom has enacted and introduced Article 14A by the 19th Amendment to the Constitution of the Republic, where right to access to information has been enshrined as a fundamental right.

¹³ SC (SD) Nos. 22/2016-25/2016, *Decisions of the Supreme Court on Parliamentary Bill: 2016-2017* (vol XII, Parliament, 2018) 35

¹⁴ *Ibid*, p 41

¹⁵ CA/RTI/0004/2021, decided on 28.02.2023

I am of the view that when interpreting the provisions of the RTI Act, it is in this spirit of the intentions of the legislature, the relevant Act or Acts should be interpreted by the relevant authority and not to take cover in order to avoid providing the information asked for, unless such information can be denied in terms of section 5 of the RTI Act.

Even in instances where the RTI Act provides for the denial of access to information, it has been stated that if the public interest in disclosing the information outweighs the harm that would result in its disclosure, such information should be released. (emphasis added)

Such decision has also been cited with approval in ***Asia Broadcasting Corporation (Pvt) Ltd. v. M.J.K. Dissanayake***.¹⁶

It is observed that the manner in which the RTI Commission had proceeded to consider and interpret section 43(2) is also consistent with the approach indicated in the above judicial decisions.

The Petitioner has also contended that the rule of statutory interpretation *generalis specialibus non derogant* to the effect that "general provisions do not derogate from special ones" should be employed in interpreting the various sub-sections of section 43 of the RTI Act, and, argued since the Commission had determined that the Petitioner did not fall within the ambit of sections 43(j) and 43(k), which were of a specific nature, it should not be held liable under section 43(b), which was a broader general provision. In response, the 1st to 5th Respondents conceded that, whilst there may be an overlap between sub-section (b) and (j) and (k) of section 43, there is no bar or rule precluding such overlap. In so far as the Petitioner was adjudged to fall within the ambit of sub-section (b) of section 43, it was immaterial that it may have been excluded from liability under sub-sections (j) and (k) thereof.

I am inclined to accept the aforementioned position taken by the 1st to 5th Respondents, considering the fact that section 43(3) is a stand-alone provision and as its applicability to the Petitioner has been established. However, insofar as the instant case is concerned, there appears to be an overlap between sub-sections (b) of section 43 on one hand and sub-sections (j) and (k) thereof on the other, but the task of addressing same lies with Parliament and not this Court, as also submitted by the Petitioner. Although the parties have made detailed references in their written submissions on the applicability or otherwise of sections 43(j) and 43(k) to the Petitioner, I am of the view that it is unnecessary to consider same as the Petitioner would still remain liable in terms of section 43(b).

I am also not inclined to accept the "flood gates" argument presented by the Petitioner that a broad interpretation of section 43(b) would lead to absurd consequences and improperly bring countless private incorporated bodies within the ambit of the RTI Act for several reasons. Firstly, if the criteria set out in the said section are met, the number and nature of the institution is immaterial for the application of the section. Secondly, if an institution was incorporated by an Act of Parliament and has thereby received the *imprimatur* of Parliament I re-iterate that it is not irrational or unreasonable to expect such institution to act in a

¹⁶ CA/RTI/0003/2024, decided on 05.03.2026

transparent manner and be accountable for its action, which are the ideals that the right to information regime seeks to foster.

On the issue of the application of Article 23(1) of the Constitution and section 44 of the Constitution, I am conscious of the following matters. It is incontrovertible that the Sinhala and Tamil are official languages of the legislation and have to be given effect to, and, in the case of an inconsistency between the texts in such languages, the Sinhala text would prevail. However, the dispute in the instant case relates to the interpretation of the English text, which, as the 1st to 5th Respondents have stated in their post-hearing written submissions, are not addressed by the aforementioned Article 23(1) or section 44. Thus, what is before this Court are two competing interpretations of section 43(b) relating to the English text of the RTI Act.

Upon consideration of the totality of the aforementioned circumstances, I am of the view that the interpretation of section 43(b) adopted by the RTI Commission is neither *ultra vires* or illegal or irrational or unreasonable, as contended by the Petitioner. I am further of the view that such interpretation serves the object of fostering a culture of transparency and accountability envisaged by Parliament in enacting the RTI Act.

Legal Objections

The 5A Respondent has raised two preliminary objections in respect of the instant application. Although the consideration of such legal objections is not necessary in view of my aforementioned findings on the merits, for the sake of completeness, I will endeavour to briefly address such objections.

A. Necessary Parties

The 5A Respondent has pointed out that the Petitioner had filed and supported the instant application without citing the said 5A Respondent as a party, and, after obtaining notice, had belatedly sought to add the said party as a respondent to cure a fundamental defect in the institution of this application.¹⁷ It is the position of the 5A Respondent that, as the successful party before the Commission and as a party whose rights would be affected by an order made in these proceedings, the said 5A Respondent is a necessary party who should have been mandatorily cited as a party from the very inception in this application. In addition, the 5A Respondent has alleged that such conduct on the part of the Petitioner demonstrates *mala fides*, procedural impropriety and an abuse of the process of Court.

The response of the Petitioner to the 5A Respondent had been added at a very early stage before any formal proceedings requiring the presence of all parties had commenced and as such no prejudice had been caused to him.¹⁸ I am unable to accept such position taken up by the Petitioner. In the instant application, the Petitioner had impugned an order made by the RTI Commission in the 5A Respondent's favour, and, was fully aware or could reasonably be expected to be aware that that the relief sought in the instant application, if granted, would

¹⁷ Written submissions of the 5A Respondent, paragraph 3

¹⁸ Post-hearing written submissions of the Petitioner, paragraphs 139-143

adversely affect the rights and interests of the said party. As such, the 5A Respondent was not merely a necessary but an essential party to the instant application, and, should have been cited as a party when the application was instituted. I further observe that no reasons have been adduced by the Petitioner for the failure to cite the 5A Respondent as a party at the time the instant application was instituted, and, as such, I am inclined to believe that none exists. I also observe that, by not being cited as a party from the very inception of this application, the 5A Respondent has been precluded from objecting to the issuance of formal notice. Hence, it cannot be stated that no prejudice has been caused to the said Respondent, as alleged by the Petitioner.

In view of the aforementioned circumstances, I uphold the objection raised by the 5A Respondent that the Petitioner has failed to cite necessary and material parties and further hold that the belated addition of the said Respondent does not cure such defect. I am guided by the reasoning in ***Jamila Umma v. Mohammed***,¹⁹ cited by the 5A Respondent in his written submissions, in arriving at this conclusion.

B. Alternative Remedies

The 5A Respondent has contended that the Petitioner has failed to exhaust the available statutory remedy and has improperly invoked the writ jurisdiction of this Court. He has pointed out that, without availing itself of the statutory right of appeal to this Court conferred by section 34 of the RTI Act, the Petitioner has filed the instant application invoking the writ jurisdiction of this Court.

Section 34 of the RTI provides for an appeal to the Court of Appeal from a decision of the RTI Commission in the following manner;

34. (1) A citizen or public authority who is aggrieved by the decision of the Commission made under section 32, may appeal against such decision to the Court of Appeal within one month of the date on which such decision was communicated to such citizen or public authority.

(2) Until rules are made under Article 136 of the Constitution pertaining to appeals under this section, the rules made under that Article pertaining to an application by way of revision to the Court of Appeal, shall apply in respect of every appeal made under subsection (1) of this section.

The Petitioner's response to this objection is that the impugned order (P1), in which the RTI has overruled the preliminary objection raised by the Petitioner and set the 5A Respondent's appeal down for hearing on the merits, is not a decision falling within the ambit of section 32 of the RTI Act from which an appeal is available under the aforementioned section 34 of the Act.²⁰ The Petitioner further submits that the statutory right of appeal contemplated under section 34 is "expressly and exclusively confined" to decisions made by the Commission under

¹⁹ 50 NLR 15 at 17

²⁰ Post-hearing written submissions of the Petitioner, paragraphs 19-30

section 32 of the said Act, where the Commission has either *affirmed, varied or reversed the decision appealed against and forwarded the request back to the information officer concerned for necessary action*. Thus, the Petitioner has contended that invocation of the writ jurisdiction of this Court under Article 140 of the Constitution is not only available but is the proper and appropriate remedy.

It is observed that the right of appeal accorded in section 34 of the RTI Act appears to be in respects of “decisions” of a final nature, and, viewed from such perspective, the impugned order (P1), which essentially has the characteristics of an “interlocutory order,” does not have such effect. Hence, I am inclined to accept the position taken up by the Petitioner that the writ jurisdiction of this Court is available to impugn the order (P1) (of course, subject to the Petitioner establishing its entitlement to the reliefs sought). Accordingly, I reject the objection raised by the 5A Respondent relating to alternative remedies.

Conclusion and Orders of Court

For the reasons set out above, I hold that the Petitioner has failed to establish its entitlement to the reliefs prayed for the petition. The legal objection raised by the 5A Respondent relating to material parties, as determined by me, too militate against the grant of prerogative relief. Therefore, I proceed to dismiss the Petitioner’s application. The parties will bear their own costs.

Application dismissed.

Judge of the Court of Appeal

Mayadunne Corea, J.

I agree.

Judge of the Court of Appeal